DEFINITIONS

"Affiliate" Any chapter, branch, auxiliary, or other subordinate unit of any charitable organization, howsoever designated, whose policies, fundraising activities, and expenditures are supervised or controlled by a parent organization.

"Charitable Organization" Any person granted tax-exempt status under Section 501(c)(3) of the Internal Revenue Code **or** any person who is, or holds himself out to be, established for any charitable purpose **or** any person who in any manner employs a charitable appeal as the basis of any solicitation or an appeal which has a tendency to suggest there is a charitable purpose to any solicitation.

"Charitable Purpose" Any benevolent, educational, philanthropic, humane, scientific, patriotic, social welfare or advocacy, public health, environmental conservation, civic, or other eleemosynary objective, including an objective of any bona fide duly constituted organization of law enforcement personnel, firefighters, or other persons who protect the public safety if a stated purpose of the solicitation includes any benefit to any person outside the actual active membership of the organization.

"Commercial Coventurer" Any person who for profit is regularly and primarily engaged in trade or commerce other than in connection with the raising of funds or any other thing of value when offered at the usual retail price comparable to similar goods or services in the market for a charitable organization and who advertises that the purchase or use of goods, services, entertainment, or any other thing of value will benefit a charitable organization.

"Contribution" The promise, grant, or pledge of money, credit, property, financial assistance, or other thing of any kind or value, excluding volunteer services, in response to a solicitation, including the payment or promise to pay in consideration of a performance, event, or sale of a good or service. Payment by members of an organization for membership fees, dues, fines, or assessments or for services rendered to individual members, if such fees, dues, fines, or assessments confer a bona fide right, privilege, professional standing, honor or other direct benefit, are not contributions, provided that membership is not conferred solely as consideration for making a contribution in response to a solicitation. **Government grants or contracts are also not contributions.**

"Parent Organization" An organization which coordinates, supervises, or exercises control of policy, fundraising and expenditures, or assists or receives funds from, or advises, one or more affiliates.

"Professional Fundraising Counsel" Any person retained by a charitable organization for a fixed fee or rate under a written agreement to plan, manage, advise, consult, or prepare material for, or with respect to, the solicitation of contributions for a charitable organization, but who does not solicit contributions or employ, procure, or engage any compensated person to solicit contributions and who does not have custody or control of contributions. A bona fide salaried officer or regular, nontemporary employee of a charitable organization is not a professional fundraising counsel as long as the individual is not employed or engaged as professional fundraising counsel or as a professional solicitor by any other person. **Note: A person who is otherwise a professional fundraising counsel is considered to be a professional solicitor if his compensation is related to the amount of contributions received.**

"Professional Solicitor" Any person retained for financial or other consideration by a charitable organization to solicit contributions for charitable purposes directly, or in the form of payment for goods, services, or admission to fundraising events, whether such solicitation is performed personally or through his agents, servants, or employees or through agents, servants, or employees especially employed by, or for, a charitable organization who are engaged in the solicitation of contributions, the sale of goods or services, or the production of fundraising events under the direction of such person, or a person who plans, conducts, manages, carries on, advises, consults, whether directly or indirectly, in connection with the solicitation of contributions, sale of goods or services, or the production of fundraising events for, or on behalf of, any charitable organization, but does not qualify as a professional fundraising counsel. A person who is otherwise a professional fundraising counsel is considered a professional solicitor if his compensation is related to the amount of contributions received. A bona fide salaried officer or regular, nontemporary employee of a charitable organization is not a professional solicitor as long as the individual is not employed or engaged as professional fundraising counsel or as a professional solicitor by any other person.

"Solicitation" Any direct or indirect request for a contribution on the representation that the contribution will be used, in whole or in part, for a charitable purpose, including, but not limited to, any of the following:

(1) Any oral request made in person, by telephone, radio, television, or other advertising or communication media.

(2) Any written or otherwise recorded or published request mailed, sent, delivered, circulated, distributed, posted in a public place, or advertised or communicated by press, telegraph, television, or any other media.

(3) Any sale of, offer, or attempt to sell any advertisement, advertising space, sponsorship, book, card, chance, coupon, device, food, magazine, merchandise, newspaper, subscription, ticket, or other service or tangible good, thing, or item of value.

(4) Any announcement requesting the public to attend an appeal, assemblage, athletic or competitive event, carnival, circus, contest, dance, entertainment, exhibition, exposition, game, lecture, meal, party, show, social gathering, or other performance or event of any kind.